

Risk neutral

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.197	0.175	0.030	0.285	0.175
Trial Fee-Shifting	0.171	0.171	0.043	0.285	0.142
Complete Fee-Shifting	0.171	0.171	0.043	0.285	0.142

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.146	0.185	0.003	0.319	0.025
Trial Fee-Shifting	0.168	0.194	0.001	0.359	0.005
Complete Fee-Shifting	0.168	0.194	0.001	0.359	0.005